

24NWCV00312 24NWCV00312

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Case Number: 24NWCV00312 Hearing Date: July 21, 2026 Dept: P

CHRISTINA BERMUDEZ v. ROSE MEAT SERVICES, INC., ET AL.

CASE NO.: 24NWCV00312

HEARING: 07/21/2026 @

9:30 AM

#11

TENTATIVE ORDER

Plaintiff Christina Bermudez's motion to compel the deposition of Kevin Rose is GRANTED.

Moving party to give notice.

Plaintiff Christina Bermudez (Plaintiff) moves to compel Defendant Rose Meat Services, Inc. (Defendant) to produce its officer Kevin Rose to appear for a deposition.

Background

On January 30, 2024, Plaintiff filed this sexual harassment action against Defendants Rose Meat Services, Inc., Employee Force Provider, Inc. (EFP), and Does 1 through 10 (collectively, Defendants). The complaint alleges the following: Defendants employed Plaintiff from September of 2021 through May of 2023 and throughout the course of the employment, "Defendants' managing agents and/or supervisors, including Fernando and Fidel, sexually

harassed Plaintiff by initiating unwanted sexual advances and visual and verbal conduct of a sexual nature.” (Complaint, ¶¶ 16-17.) Part of the workplace culture included Fernando and Fidel leering at female employee’s buttocks and making comments. (Complaint, ¶ 18.) Fernando and Fedel sexually harassed Plaintiff through “(a) remarks such as ‘I would like to have your legs over my shoulders,’ (b) inappropriate comments about the size of Ms. Bermudez’s buttocks, (c) unwanted persistent sexual advances from Fernando, and (d) requests for sex from Fernando, such as ‘say you want to go home early, let’s get a room.’” (Complaint, ¶ 19.) The complaint alleges that when Plaintiff reported Fernando’s conduct as to her and other female employees to Defendants’ management in late December of 2022, Defendants fired Plaintiff and other female employees. (Complaint, ¶ 21.)

The complaint asserts eight causes of action: (1) Sex and/or Gender Discrimination (Gov. Code, §§ 12940, et seq.); (2) Sexual Harassment (Gov. Code, §§ 12940, et seq.); (3) Retaliation for Opposing Sex and/or Gender Discrimination and Harassment (Gov. Code, §§ 12940, et seq.); (4) Failure to Prevent Discrimination, Harassment, and Retaliation (Gov. Code, §§ 12940, et seq.); (5) Gross Negligence; (6) Negligence Per Se; (7) Negligent Hiring, Supervision, and Retention; and (8) Wrongful Termination in Violation of Public Policy.

On May 5, 2026, the Court denied Rose Meat’s motion for summary judgment. The Court granted in part and denied in part Rose Meat’s motion for summary adjudication. The Court granted Rose Meat’s motion for summary adjudication as to the first and sixth causes of action and claim for punitive damages.

Legal Standard

“If, after service of a deposition notice, a party to the action...without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document...described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document...described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (a).) The motion “shall...set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (b)(1).)

"Any party served with a deposition notice that does not comply with Article 2...waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served." (Code Civ. Proc., § 2025.410, subd. (a).)

Meet and Confer

"The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition...by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).)

The parties have adequately met and conferred. (Wright Decl., ¶ 4.)

Discussion

Plaintiff moves to compel Defendant to produce its Vice President Kevin Rose to appear for a deposition.

Plaintiff moves on the grounds that Kevin Rose is a percipient witness who must be deposed and Defendant is improperly blocking this deposition under the apex doctrine. Defendant opposes this motion on the grounds that it is barred by the apex doctrine.

The apex doctrine is as follows:

[W]hen a plaintiff seeks to depose a corporate president or other official at the highest level of corporate management, and that official moves for a protective order to prohibit the deposition, the trial court should first determine whether the plaintiff has shown good cause that the official has unique or superior personal knowledge of discoverable information. If not, as will presumably often be the case in the instance of a large national or international corporation, the trial court should issue the protective order and first require the plaintiff

to obtain the necessary discovery through less-intrusive methods.

(Liberty Mutual Ins. Co. v. Superior Court [Liberty Mutual] (1992) 10 Cal.App.4th 1282, 1289.)

Under Liberty Mutual, the apex doctrine requires two components—that a party seeks to depose a corporate official and that official has moved for a protective order. (Ibid.) Here, while Kevin Rose may be an official at Defendant, there is no motion for a protective order on the record. A motion for a protective order requires a noticed motion. (See Code Civ. Proc., §§ 2019.030, subd. (b); 2017.020, subd. (a).) As there is no motion for a protective order filed with this Court, the apex doctrine does not apply.

As this is a motion to compel deposition without a protective order at issue, the Court proceeds with this ruling under the standard for a motion to compel deposition.

“Any party may obtain discovery within the scope delimited by Chapter 2...by taking in California the oral deposition of any person, including any party to the action.” (Code Civ. Proc., § 2025.010.) The scope of discovery is broad, and includes, “discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter...” (Code Civ. Proc., § 2017.010.)

Plaintiff shows that following her deposition of Defendant’s Vice President Jason Rose (Jason), Jason testified that Kevin Rose oversaw some human resources duties during Plaintiff’s employment. (Wright Decl., Exh. A, Jason Depo., 27:3-19.) Plaintiff points to other parts of Jason’s testimony referring to conversations with Kevin Rose regarding Plaintiff’s complaint, Kevin Rose’s involvement in updates related to Defendant’s investigation, and Kevin Rose’s involvement with human resources issues. (Wright Decl., Exh. A, Jason Depo.)

Based on the foregoing, Plaintiff establishes that it is entitled to depose Kevin Rose as the discovery is “reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010.)

Defendant next argues that this motion is procedurally defective. Defendant argues that Plaintiff improperly set the deposition less than ten days from the deposition notice. (See Code Civ. Proc., § 2025.270, subd. (a).) Plaintiff contends that she noticed the deposition for the purpose of moving to compel the deposition after Defendant confirmed that it would not produce Kevin Rose for a deposition on any date. Plaintiff argues that Defendant's procedural argument is a red herring.

Here, the Court agrees that the notice was deficient. However, Defendant does not show that it timely objected to the deposition notice. "Any party served with a deposition notice that does not comply with Article 2...waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled." (Code Civ. Proc., § 2025.410, subd. (a).) Therefore, based on the facts presented here, Defendant waived any errors to the deposition notice.

Based on the foregoing, Plaintiff's motion to compel the deposition of Kevin Rose is GRANTED.

Defendant is ORDERED to produce Kevin Rose to appear for deposition within 10 days of this Order. This date may be extended pursuant to agreement between the parties.

Moving party to give notice.